

April 1, 2026

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Surrey, BC
V3X 1G1

RE: 1410 E 49th Avenue, Vancouver, BC V5P 1S3
Development permit application number DP-2025-00783

On behalf of the Director of Planning, your application has been approved to perform interior alterations to combine units 1410 and 1408 and change of use of approximately 2,307.0 sq. ft. on the ground floor from Office to a Child Day Care Facility for up to 20 children (ages 30 months to school age), in this existing 3-storey plus basement mixed-use building on the site.

A permit may be issued upon the completion of the revisions and conditions noted below under items 1.0 to 2.3 of this "prior-to permit issuance" letter.

HOW TO RESPOND TO THIS LETTER

1. Write and sign a response letter.

- Explain how you addressed each condition.
- Only changes made pursuant to addressing Prior To conditions are accepted as part of your response. Ensure all changes are clearly identified.
- *Provide a complete response to avoid delays or extra fees.*

2. Ensure relevant documents have digital signatures and seals from registered professionals.

- Review requirements at vancouver.ca/permits-eplan.

3. Upload your response letter and documents.

- Log into your permit account at vancouver.ca/permit-apply.

APPLY FOR BUILDING PERMIT(S)

Apply using the Development and Building Services Centre form at vancouver.ca/contact-dbl.

Questions? Contact Samantha Senechal, your Project Coordinator (details at end of letter).

- 1.0 Prior to the issuance of the Development Permit, revised digital drawings shall be submitted, to the satisfaction of the Director of Planning, clearly indicating:

Development Review Branch conditions:

- 1.1 compliance with Section 6 (6.2.2.6) Required Off-Street Bicycle Spaces and the Design Supplements of the Parking By-law:

- i. a minimum of three (3) Class B off-street bicycle spaces;

Note to Applicant: Bicycle spaces to be clearly labelled and dimensioned on the drawings. Class A spaces noted on drawings are required for residential units and cannot be substituted for required Class B spaces.

- 1.2 compliance with Section 7 Class A Passenger Spaces of the Parking By-law:

- i. a minimum of two (2) Class A Passenger Spaces;
- ii. minimum 4.0 m (13.1 ft.) width and 5.5 m (18 ft.) length for the first-Class A space;
- iii. minimum 2.9 m (9.5 ft.) width and 5.5 m (18 ft.) length after the first-Class A space;

Note to applicant: Passenger spaces must comply with the minimum size requirements as per the Parking By-law Section 7 and the Design Supplement. Label the allocated Passenger Spaces on the site plan and update Parking statistics to reflect the changes.

- 1.3 provision of revisions and additional information on drawings as follows:

- i. improved technical data table (project statistics) to incorporate the entire site;

Note to Applicant: Provide statistical breakdowns for all approved and proposed uses on this site including required, existing and proposed data requirements. Refer to DP Change of use checklist for details:

<https://vancouver.ca/files/cov/change-of-use-main-app.pdf>

- ii. reformat drawings to meet the electronic file requirements;

Note to Applicant: Make sure that you don't certify ("lock") your documents prior to submission. Please see [Electronic permit applications | City of Vancouver](#) for guidelines.

Social Policy conditions:

- 1.4 provision of on-site outdoor play area in compliance with licensing requirements for the capacity proposed.

Note to Applicant: On-site outdoor play space is required in the amount specified in the BC Child Care Licensing Regulation. Indoor space cannot be counted toward meeting the requirement for on-site outdoor play area.

2.0 **Condition(s) to be met prior to the issuance of the Development Permit:**

Development Review Branch conditions:

- 2.1 Written confirmation that Building Review Branch comments under 4.4 have been acknowledged and understood, is required to be submitted as part of the “prior-to” response.
- 2.2 Written confirmation that the notification sign on the site has been removed.
- 2.3 Provide updated letter of operation to capture any revisions and applicable relaxation rationale.

3.0 **Development Permit Terms:**

- 3.1 All approved off-street vehicle parking, loading, and unloading spaces, and bicycle parking spaces shall be provided in accordance with the relevant requirements of the Parking By-law **prior to the issuance of any required Occupancy Permit**, or any use or occupancy of the proposed development not requiring an Occupancy Permit, and thereafter permanently maintained in good condition.
- 3.2 All landscaping and treatment of the open portions of the site shall be completed in accordance with the approved drawings **prior to the issuance of any required Occupancy Permit**, or any use or occupancy of the proposed development not requiring an Occupancy Permit, and thereafter permanently maintained in good condition.

Note to Applicant: In cases where it is not practical, due to adverse weather conditions or other mitigating factors, to complete the landscaping prior to occupancy of a building, the City will accept an Irrevocable Letter of Credit (amount to be determined by the City) as a guarantee for completion of the work by an agreed upon date.

- 3.3 In accordance with Protection of Trees By-law Number 9958, the removal and replacement of trees is permitted only as indicated on the approved Development Permit drawings.
- 3.4 This Development Permit is valid for a period of 12 months from the date of issuance - unless otherwise validated by a Building Permit.
- 3.5 This permit has been issued for a time limited period and will expire on the date noted unless extended in writing by the Director of Planning. It is the applicant's responsibility to request an extension prior to the expiry date.
- 3.6 Development must meet requirements of the Community Care and Assisted Living Act, Child Care Licensing Regulations and the Adult Care Regulations prior to approval at Building Permit stage.
- 3.7 Final capacity will be determined at the Child Care Final Inspection.

4.0 Notes to Applicant:

- 4.1 It should be noted that your Development Permit will be issued when you have complied with all the above conditions. However, if these conditions have not been complied with **on, or before October 1, 2026**, this Development Application may stand refused.
- 4.2 A new Development Application will be required for any significant changes. This approval is subject to any change in the Zoning and Development By-law or other regulations affecting the development that occurs before the permit is issuable. No permit that contravenes the by-law or regulations can be issued.
- 4.3 If this application necessitates the demolition of existing residential rental, per Section 10.14.2 and except as set out in Section 10.14.3, where development necessitates the demolition of existing residential rental accommodation, no development permit shall be issued for the demolition unless and until a development permit for the new development has been issued.

Note to Applicant: The requirements listed above may be varied subject to the provisions outlined under Section 10.14.4.

- 4.4 The following comments have been made by the Building Review Branch. This is a preliminary review in order to identify major issues which do not comply with Vancouver Building By-law #14343 as amended (VBBL 2025).

* Please note that Building Permit applications must conform to Vancouver Building By-law #14343 (2019) as may be amended from time to time. Please see the following page: <http://vancouver.ca/your-government/vancouver-building-bylaw.aspx>.

The following information should be included at Building Permit Application Stage:

- i. As of September 15, 2025, all submissions are to be in accordance with the VBBL 2025.
- ii. Alteration shall not increase the non-conformity of the existing building or create non-conformity with respect to VBBL 2025. All new work shall conform to VBBL 2025.
- iii. ***This project requires the services of a registered architect. Architectural Schedule B and sealed drawings should be submitted.**
- iv. ***This project is considered a minor renovation and change of major occupancy. The building shall be upgraded to design level F1, S2, N1, A2 in compliance with part 11 of VBBL as per VBBL 2025 11.1.4.2(1). Upgrade level to be indicated on the architectural drawings.**
- v. ***Provide washroom calculations as per VBBL 2025 Section 3.7 at Building Permit stage.**

- a. **As per VBBL 2025 3.7.2.2(5), the number of water closet require for a daycare facilities for children shall be at least one for each 30 males and one for each 25 females.**

- 1) **Revise to comply.**

- vi. ***Provide occupant load calculation per area as per VBBL 2025 3.1.17.1 at Building Permit stage.**

- vii. ***Identify egress doorway and travel distance at Building Permit stage.**

- a. **Identify location of existing and new proposed:**

- 1) **Exit signs**
 - 2) **Emergency lights**
 - 3) **Fire Alarm**

- viii. ***Provide accessibility plumbing facility to children as per VBBL 2025 3.8.2.8(16)**

- ix. Kitchen review may be required at Building Permit stage depending on the kitchen operation. Please specify at Building Permit Stage.

- x. ***The “outdoor space” serving the daycare is consider A2 and the adjacent residential garbage and recycling room are considered F2 occupancy and 2 hour separation is required as per VBBL 2025 Table 3.1.3.1.**

- xi. Purpose outdoor space required to be accessible.

- xii. ***Building Permit drawing and Development Permit drawing are to match.**

- xiii. All new architectural, mechanical and electrical components are required to comply with the energy and emissions requirements of the Vancouver Building By-law #14343. Please add to your drawings the Energy Statements per the “Energy Statements on Drawings” requirements found within the City of Vancouver energy webpage (<http://vancouver.ca/building-energy-requirements>).

*Items marked with an asterisk have been identified as serious non-conforming Building By-law issues.

Written confirmation that the applicant has read and has understood the implications of the above noted comments is required and shall be submitted as part of the "prior to" response.

- 4.5 If this Development Application included a written notification of neighbouring property owners or other interested parties, a copy of this letter will be sent to all respondents advising them of the decision.

- 4.6 The Canadian Electrical Code regulates high voltage overhead conductor clearances from structures and dielectric liquid-filled transformer clearances from combustible building surfaces, doors, windows, and ventilation openings. All structures must have a horizontal distance of at least 3 m from existing BC Hydro high voltage overhead conductors. Combustible building surfaces, windows, doors, and ventilation openings must be located at least 6 m from dielectric liquid-filled, pole-mounted BC Hydro transformers, unless an acceptable non-combustible barrier is constructed between these transformers and combustible building surfaces, doors, windows, or ventilation openings.

Yours truly,



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SS/jk